

BEFORE
THE FEDERAL MARITIME COMMISSION

DOCKET NO. 23-01

SAMSUNG ELECTRONICS AMERICA, INC.
Complainant

VS.

SM LINE CORPORATION
Respondent

**RESPONDENT'S MOTION FOR CONFIDENTIAL TREATMENT
OF PORTIONS OF ITS RESPONSE TO NONPARTY SDSA'S MOTION TO QUASH OR
MODIFY SUBPOENA, OR ALTERNATIVELY FOR A PROTECTIVE ORDER**

Respondent SM Line Corporation ("SM Line") hereby moves pursuant to 46 C.F.R. §§ 502.69 and 502.5(b) to seek confidential treatment of certain portions of Respondent's Response to Nonparty Samsung SDS America, Inc.'s ("SDSA") Motion to Quash or Modify Subpoena, or Alternatively for a Protective Order ("Response to Motion to Quash") and Exhibits A and Exhibit B submitted therewith. ("Response").

SM Line's Response references email correspondence, bills of lading and payments between and among SM Line, Samsung Electronics America, Inc. and SDSA. These documents have been produced and exchanged between the parties to the original action subject to a confidentiality agreement and therefore cannot be disclosed.

The documents and communications attached to SM Line's Response to the Motion to Quash as Exhibits A and Exhibit B are subject to confidentiality provisions that prevent the disclosure of their terms and related information, including the identities of the parties to the

respective bills, emails and payments and their communications, unless certain conditions are met. As to the date of this Response the conditions for disclosure have not been met.

Additionally, the contractually agreed upon rates that are enclosed or referred to in the documents were privately negotiated between SM Line and SEA as well as third parties and are, therefore, also confidential. Disclosure of the Rates would damage the commercial interests and competitiveness of the parties.

For the foregoing reasons, SM Line respectfully requests that:

1. The content of the communications, bills of lading and payments that are included in Exhibits A and B to SM Line's Response to the Motion to Quash, as well as the identity of the parties to same, and their communication be kept confidential.
2. Be allowed to submit a public redacted version of the material for which it seeks confidentiality pursuant to 46 C.F.R. § 502.5(a)(2).

Dated: January 12, 2024

Respectfully submitted,

/s/Vincent M. DeOrchis

/s/Wook Chung

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Counsel for Respondent

SM Line Corporation

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 12th day of January 2024, the foregoing document was served via electronic mail on:

Federal Maritime Commission
Office of the Secretary
secretary@fmc.gov

Federal Maritime Commission
Presiding Administrative Law Judge
judges@fmc.gov

Complainant
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/s/Wook Chung_____